

CUI Requirements — NID 2810.135 (Expired)

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1 Source Document

EXPIRED DOCUMENT — TEST DATA ONLY

This requirements document is derived from an **expired** directive. It is used for framework demonstration purposes only. For production compliance, reference the successor document.

Document ID: NID 2810.135
Title: Controlled Unclassified Information
Issuing Authority: NASA
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Successor Document: **ID:** NPR 2810.7
Title: Controlled Unclassified Information (Change 1)
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URL: <https://nodis3.gsfc.nasa.gov/displayDir.cfm?t=NPR&c=2810&s=7>

Parent Policy: **ID:** NPD 2810.1F
Title: NASA Information Security Policy
URL: <https://nodis3.gsfc.nasa.gov/displayDir.cfm?t=NPD&c=2810&s=1E>

Federal Authority: Executive Order 13556, 32 CFR Part 2002

EXPIRED — This document is used as TEST DATA for framework demonstration. All requirements were carried forward into NPR 2810.7. For production compliance, reference REQ-2026-003 (NPR 2810.7).

2 Purpose

This document extracts and formalizes the normative requirements from NID 2810.135 for use as **test data** in the systems-engineering V&V framework. The source directive is expired; for production compliance, reference the successor document.

3 Applicable Standards

Standard	Description
EO 13556	Establishing the Controlled Unclassified Information Program
32 CFR Part 2002	Controlled Unclassified Information Program
NIST SP 800-171	Protecting CUI in Nonfederal Systems and Organizations
NIST SP 800-53	Security and Privacy Controls for Information Systems
FIPS 199	Standards for Security Categorization of Federal Information
FIPS 140 2	Security Requirements for Cryptographic Modules
NIST SP 800-88	Guidelines for Media Sanitization
NARA CUI Registry	National Archives CUI Registry

4 Requirements

Requirements are categorized as:

- **[M]** – Mandatory: Must be implemented (SHALL)
- **[R]** – Recommended: Should be implemented where feasible (SHOULD)
- **[O]** – Optional: May be implemented (MAY)

Applicability indicators:

- **[T]** – Technical: Verifiable against a software implementation
- **[O]** – Organizational: Requires process or policy implementation
- **[I]** – Informational: Reference material, not directly testable

4.1 Roles and Responsibilities

ID	Requirement
REQ-1.1	[M] [O] The NASA Administrator SHALL establish and maintain an agency-wide CUI program consistent with EO 13556 and 32 CFR Part 2002.
REQ-1.2	[M] [O] The NASA Chief Information Officer/Senior Agency Official (CIO/SAO) SHALL oversee implementation of the CUI program across the agency.
REQ-1.3	[M] [O] The CUI Program Manager SHALL manage day-to-day CUI program operations and serve as the primary point of contact for CUI matters.
REQ-1.4	[M] [O] Center Directors SHALL ensure CUI program compliance at their respective Centers.

ID	Requirement
REQ-1.5	[M] [O] Center Chief Information Officers SHALL implement IT controls for CUI within Center information systems.
REQ-1.6	[M] [O] Contracting Officers SHALL include CUI handling requirements in contracts and agreements involving CUI.
REQ-1.7	[M] [O] Contracting Officer Representatives (CORs) SHALL monitor contractor compliance with CUI handling requirements.
REQ-1.8	[M] [O] Supervisors SHALL ensure all personnel under their authority are aware of CUI requirements and complete required training.
REQ-1.9	[M] [O] All NASA personnel and contractors SHALL safeguard CUI in their possession and report suspected unauthorized disclosures.
REQ-1.10	[M] [O] Non-executive branch entities receiving CUI SHALL handle it in accordance with the provisions of applicable agreements (MOUs, contracts, grants).

4.2 General CUI Management

ID	Requirement
REQ-2.1.1	[M] [O] CUI categories and subcategories SHALL be drawn from the NARA CUI Registry.
REQ-2.1.2	[M] [I] Authorized holders of CUI SHALL be responsible for knowing what CUI they possess, how to protect it, and whom to contact regarding questions about CUI.
REQ-2.1.3	[M] [I] CUI Basic SHALL be handled according to the uniform set of controls in 32 CFR Part 2002. CUI Specified SHALL be handled according to the controls required by the authorizing law, regulation, or government-wide policy.

4.3 Marking

ID	Requirement
REQ-2.2.1	[M] [T] All CUI documents SHALL include a CUI banner marking at the top of each page.
REQ-2.2.2	[M] [T] The CUI banner marking SHALL include the CUI designation indicator (e.g., CUI or CONTROLLED).
REQ-2.2.3	[M] [T] CUI Specified documents SHALL include the specific CUI category or subcategory marking (e.g., CUI//SP-CTI, CUI//SP-EXPT).
REQ-2.2.4	[M] [T] CUI markings SHALL include the name or abbreviation of the designating agency or organization.

ID	Requirement
REQ-2.2.5	[R] [T] CUI markings SHOULD include limited dissemination control markings where applicable (e.g., NOFORN, FEDCON, NOCON).
REQ-2.2.6	[R] [T] CUI banner markings SHOULD include a point of contact for questions about the CUI designation.

4.4 Portion Marking

ID	Requirement
REQ-2.3.1	[O] [T] Portion marking of CUI documents MAY be used at NASA but is not required unless mandated by a CUI Specified authority.
REQ-2.3.2	[M] [T] If portion marking is used, each portion containing CUI SHALL be marked with the applicable CUI designation.

4.5 Commingling

ID	Requirement
REQ-2.4.1	[M] [I] When CUI is commingled with classified information, the most restrictive handling requirements SHALL apply to the entire document.
REQ-2.4.2	[R] [I] CUI SHOULD be separated from classified national security information where feasible to facilitate appropriate handling.

4.6 Cover Sheets

ID	Requirement
REQ-2.5.1	[M] [T] Standard Form 901 (SF901) CUI cover sheets SHALL be used when required to protect CUI documents from unauthorized visual access.
REQ-2.5.2	[M] [O] Legacy markings (e.g., FOUO, SBU) on existing documents SHALL be honored and protected at the CUI level until the documents are re-marked or decontrolled.

4.7 Working Papers

ID	Requirement
REQ-2.6.1	[M] [O] Working papers containing CUI SHALL be marked and safeguarded in the same manner as final CUI documents.

4.8 Supplemental Markings

ID	Requirement
REQ-2.7.1	[M] [T] Supplemental administrative markings (e.g., NOFORN, FEDCON, NOCON) SHALL be applied in accordance with the CUI Registry and dissemination control requirements.
REQ-2.7.2	[M] [T] Limited dissemination controls SHALL be indicated after the CUI marking, separated by a double slash (e.g., CUI//NOFORN).

4.9 Unmarked CUI

ID	Requirement
REQ-2.8.1	[M] [O] Personnel who receive information they believe to be CUI but is not marked SHALL notify the designating agency or authorized holder.
REQ-2.8.2	[M] [O] Suspected CUI that is not marked SHALL be treated as CUI and safeguarded accordingly until the designating agency confirms or denies the CUI status.

4.10 Sharing and Dissemination

ID	Requirement
REQ-2.9.1	[M] [T] CUI SHALL only be shared with authorized recipients who have a lawful government purpose and a need to know.
REQ-2.9.2	[M] [O] Sharing CUI with non-executive branch entities SHALL be governed by written agreements (MOUs, contracts, grants) that specify handling requirements.
REQ-2.9.3	[M] [T] Electronic transmission of CUI SHALL use encryption meeting the requirements of Section 2.13 (Safeguarding).
REQ-2.9.4	[R] [T] When sharing CUI electronically, the transmitting system SHOULD include a notice informing the recipient that the information is CUI and subject to safeguarding requirements.

4.11 Disclosure

ID	Requirement
REQ-2.10.1	[M] [O] CUI disclosure requirements under FOIA, Privacy Act, and other statutes SHALL be followed. CUI status does not override legal requirements to disclose information.

4.12 Challenges

ID	Requirement
REQ-2.11.1	[M] [O] NASA personnel SHALL be permitted to challenge the designation of information as CUI through established processes without fear of retribution.
REQ-2.11.2	[M] [O] Challenges to CUI designation SHALL be resolved by the designating authority or the CUI PM within a reasonable timeframe.

4.13 Decontrol

ID	Requirement
REQ-2.12.1	[M] [O] Only authorized holders or the designating agency SHALL decontrol CUI. Decontrol removes safeguarding and dissemination requirements.
REQ-2.12.2	[M] [T] When CUI is decontrolled, all CUI markings SHALL be removed or clearly struck through, and recipients SHALL be notified of the change in status.

4.14 Safeguarding

ID	Requirement
REQ-2.13.1	[M] [T] CUI SHALL be protected from unauthorized access, use, or disclosure through physical, technical, and administrative safeguards.
REQ-2.13.2	[M] [T] Electronic CUI at rest SHALL be encrypted using FIPS 140-2 validated cryptographic modules.
REQ-2.13.3	[M] [T] Electronic CUI in transit SHALL be encrypted using FIPS 140-2 validated cryptographic modules.
REQ-2.13.4	[M] [T] Access to CUI SHALL be limited to authorized individuals through access control mechanisms (authentication and authorization).

ID	Requirement
REQ-2.13.5	[M] [O] Physical CUI documents SHALL be stored in locked containers or areas with access restricted to authorized personnel when not under direct control of an authorized holder.
REQ-2.13.6	[M] [T] Systems processing CUI SHALL implement the security requirements of NIST SP 800-171 (for nonfederal systems) or NIST SP 800-53 (for federal systems).
REQ-2.13.7	[R] [T] CUI data SHOULD be protected from accidental exposure through anonymization or redaction before sharing outside the authorized handling environment.
REQ-2.13.8	[M] [T] Backups of CUI data SHALL be protected with the same level of safeguarding as the original data.

4.15 Reproduction

ID	Requirement
REQ-2.14.1	[M] [T] All CUI markings SHALL be maintained on reproductions (copies) of CUI documents.
REQ-2.14.2	[M] [O] Reproductions of CUI SHALL be subject to the same safeguarding requirements as the original document.

4.16 Transmission

ID	Requirement
REQ-2.15.1	[M] [T] CUI transmitted electronically SHALL be encrypted using approved methods meeting FIPS 140-2 requirements.
REQ-2.15.2	[M] [O] CUI shipped via physical mail SHALL be double-wrapped, with the inner wrapper marked with CUI markings and the outer wrapper unmarked.
REQ-2.15.3	[M] [O] CUI SHALL only be transmitted using approved channels (e.g., encrypted email, secure file transfer, registered mail).
REQ-2.15.4	[M] [T] Transmittal documents for CUI SHALL include appropriate CUI markings to indicate the presence of CUI in the attached material.

4.17 Destruction

ID	Requirement
REQ-2.17.1	[M] [O] Paper CUI documents SHALL be destroyed by cross-cut shredding, pulping, or burning to render the information unreadable and irrecoverable.
REQ-2.17.2	[M] [T] Electronic media containing CUI SHALL be sanitized in accordance with NIST SP 800-88 before disposal or reuse.
REQ-2.17.3	[M] [T] CUI data SHALL NOT be placed in standard recycling bins, uncontrolled trash receptacles, or unsecured deletion processes.

4.18 Incident Reporting

ID	Requirement
REQ-2.18.1	[M] [O] Unauthorized disclosure, loss, or compromise of CUI SHALL be reported to the NASA Security Operations Center (SOC) and the CUI PM.
REQ-2.18.2	[M] [O] CUI incidents SHALL be reported within one hour of discovery to enable timely investigation and mitigation.
REQ-2.18.3	[M] [O] Investigation of CUI incidents SHALL include assessment of potential harm and identification of remedial actions.
REQ-2.19.1	[M] [O] Sanctions for intentional misuse of CUI SHALL be applied in accordance with NASA policy and applicable laws.

4.19 IT Systems

ID	Requirement
REQ-2.20.1	[M] [T] Information systems processing, storing, or transmitting CUI SHALL be categorized at a minimum of FIPS 199 Moderate confidentiality impact level.
REQ-2.20.2	[M] [T] Federal information systems processing CUI SHALL implement security controls from NIST SP 800-53 at the Moderate baseline.
REQ-2.20.3	[M] [T] Nonfederal information systems processing CUI SHALL implement security requirements from NIST SP 800-171.
REQ-2.20.4	[M] [T] Cloud services used for CUI SHALL be FedRAMP authorized at the Moderate baseline or equivalent.
REQ-2.20.5	[M] [T] IT systems processing CUI SHALL implement access controls that enforce least privilege and need-to-know principles.
REQ-2.20.6	[M] [T] IT systems processing CUI SHALL maintain audit logs of access to CUI data sufficient to support investigation of unauthorized access or disclosure.

ID	Requirement
REQ-2.20.7	[M] [T] IT systems SHALL implement multi-factor authentication for access to CUI when technically feasible.
REQ-2.20.8	[M] [T] CUI data SHALL NOT be stored in version control repositories or other publicly accessible systems without encryption and access controls.

4.20 Self-Inspection

ID	Requirement
REQ-2.21.1	[M] [O] Each NASA Center SHALL conduct annual self-inspections of its CUI program to identify deficiencies and corrective actions.
REQ-2.21.2	[M] [O] Self-inspection results SHALL be reported to the CUI PM and used to improve program effectiveness.

4.21 Waivers

ID	Requirement
REQ-2.22.1	[M] [O] Waivers to CUI requirements SHALL be processed through the NASA CIO and documented with justification and risk acceptance.

4.22 Training

ID	Requirement
REQ-2.23.1	[M] [O] All NASA personnel and contractors with access to CUI SHALL complete initial CUI awareness training before being granted access to CUI.
REQ-2.23.2	[M] [O] Annual CUI refresher training SHALL be completed by all personnel with access to CUI.
REQ-2.23.3	[M] [O] CUI training records SHALL be maintained and available for audit by the CUI PM and self-inspection program.

5 Verification

Each requirement SHALL be verified through one or more of the following methods:

Method	Description
Inspection	Code review or document review to verify implementation matches requirement
Test	Automated or manual testing to verify correct behavior
Analysis	Review of design documentation, architecture, or parameters

Verification results are documented in the corresponding VER document.

6 Requirements Traceability

Requirement	Standard	Section
REQ-1.1	EO 13556	Chapter 1, Administrator Responsibilities
REQ-1.2	32 CFR Part 2002	Chapter 1, CIO/SAO Responsibilities
REQ-1.3	32 CFR Part 2002	Chapter 1, CUI PM Responsibilities
REQ-1.4	32 CFR Part 2002	Chapter 1, Center Director Responsibilities
REQ-1.5	NIST SP 800-53	Chapter 1, Center CIO Responsibilities
REQ-1.6	32 CFR Part 2002	Chapter 1, Contracting Officer Responsibilities
REQ-1.7	32 CFR Part 2002	Chapter 1, COR Responsibilities
REQ-1.8	32 CFR Part 2002	Chapter 1, Supervisor Responsibilities
REQ-1.9	32 CFR Part 2002	Chapter 1, All Personnel Responsibilities
REQ-1.10	32 CFR Part 2002	Chapter 1, Non-Executive Branch Responsibilities
REQ-2.1.1	NARA CUI Registry	§2.1 General
REQ-2.1.2	32 CFR Part 2002	§2.1 General
REQ-2.1.3	32 CFR Part 2002	§2.1 General — CUI Basic vs CUI Specified
REQ-2.2.1	32 CFR Part 2002	§2.2 Marking of CUI
REQ-2.2.2	32 CFR Part 2002	§2.2 Marking — Designation Indicator
REQ-2.2.3	32 CFR Part 2002	§2.2 Marking — Category/Subcategory
REQ-2.2.4	32 CFR Part 2002	§2.2 Marking — Agency Indicator
REQ-2.2.5	32 CFR Part 2002	§2.2 Marking — Dissemination Controls
REQ-2.2.6	32 CFR Part 2002	§2.2 Marking — Point of Contact
REQ-2.3.1	32 CFR Part 2002	§2.3 Portion Marking
REQ-2.3.2	32 CFR Part 2002	§2.3 Portion Marking
REQ-2.4.1	32 CFR Part 2002	§2.4 Commingling
REQ-2.4.2	32 CFR Part 2002	§2.4 Commingling
REQ-2.5.1	32 CFR Part 2002	§2.5 CUI Cover Sheets
REQ-2.5.2	32 CFR Part 2002	§2.5 Legacy Materials
REQ-2.6.1	32 CFR Part 2002	§2.6 Working Papers
REQ-2.7.1	NARA CUI Registry	§2.7 Supplemental Markings
REQ-2.7.2	32 CFR Part 2002	§2.7 Supplemental Markings — Format
REQ-2.8.1	32 CFR Part 2002	§2.8 Unmarked CUI
REQ-2.8.2	32 CFR Part 2002	§2.8 Unmarked CUI
REQ-2.9.1	32 CFR Part 2002	§2.9 Sharing — Need to Know

Requirement	Standard	Section
REQ-2.9.2	32 CFR Part 2002	§2.9 Sharing — Non-Executive Branch
REQ-2.9.3	NIST SP 800-171	§2.9 Sharing — Electronic Transmission
REQ-2.9.4	32 CFR Part 2002	§2.9 Sharing — Recipient Notice
REQ-2.10.1	32 CFR Part 2002	§2.10 CUI Disclosure Statutes
REQ-2.11.1	32 CFR Part 2002	§2.11 Challenges to Designation
REQ-2.11.2	32 CFR Part 2002	§2.11 Challenges — Resolution
REQ-2.12.1	32 CFR Part 2002	§2.12 Decontrol of CUI
REQ-2.12.2	32 CFR Part 2002	§2.12 Decontrol — Marking Removal
REQ-2.13.1	NIST SP 800-171	§2.13 Safeguarding — General
REQ-2.13.2	FIPS 140 2	§2.13 Safeguarding — Encryption at Rest
REQ-2.13.3	FIPS 140 2	§2.13 Safeguarding — Encryption in Transit
REQ-2.13.4	NIST SP 800-171	§2.13 Safeguarding — Access Control
REQ-2.13.5	32 CFR Part 2002	§2.13 Safeguarding — Physical Storage
REQ-2.13.6	NIST SP 800-171	§2.13 Safeguarding — NIST Controls
REQ-2.13.7	NIST SP 800-171	§2.13 Safeguarding — Data Minimization
REQ-2.13.8	NIST SP 800-171	§2.13 Safeguarding — Backup Protection
REQ-2.14.1	32 CFR Part 2002	§2.14 Reproduction of CUI
REQ-2.14.2	32 CFR Part 2002	§2.14 Reproduction — Same Protections
REQ-2.15.1	FIPS 140 2	§2.15 Transmission — Electronic
REQ-2.15.2	32 CFR Part 2002	§2.15 Shipping/Mailing — Physical
REQ-2.15.3	32 CFR Part 2002	§2.15 Transmission — Approved Channels
REQ-2.15.4	32 CFR Part 2002	§2.16 Transmittal Document Marking
REQ-2.17.1	32 CFR Part 2002	§2.17 Destruction — Paper
REQ-2.17.2	NIST SP 800-88	§2.17 Destruction — Electronic Media
REQ-2.17.3	32 CFR Part 2002	§2.17 Destruction — Prohibited Methods
REQ-2.18.1	32 CFR Part 2002	§2.18 Misuse and Incident Reporting
REQ-2.18.2	32 CFR Part 2002	§2.18 Incident Reporting — Timeline
REQ-2.18.3	32 CFR Part 2002	§2.18 Incident Reporting — Investigation
REQ-2.19.1	32 CFR Part 2002	§2.19 Sanctions for Misuse
REQ-2.20.1	FIPS 199	§2.20 CUI Within IT Systems — Categorization
REQ-2.20.2	NIST SP 800-53	§2.20 IT Systems — Federal Controls
REQ-2.20.3	NIST SP 800-171	§2.20 IT Systems — Nonfederal Controls
REQ-2.20.4	NIST SP 800-53	§2.20 IT Systems — Cloud Services
REQ-2.20.5	NIST SP 800-171	§2.20 IT Systems — Access Control
REQ-2.20.6	NIST SP 800-53	§2.20 IT Systems — Audit Logging
REQ-2.20.7	NIST SP 800-171	§2.20 IT Systems — Authentication
REQ-2.20.8	NIST SP 800-171	§2.20 IT Systems — Repository Controls
REQ-2.21.1	32 CFR Part 2002	§2.21 Self-Inspection Program
REQ-2.21.2	32 CFR Part 2002	§2.21 Self-Inspection — Reporting
REQ-2.22.1	32 CFR Part 2002	§2.22 Waivers
REQ-2.23.1	32 CFR Part 2002	§2.23 Training — Initial
REQ-2.23.2	32 CFR Part 2002	§2.23 Training — Annual Refresher
REQ-2.23.3	32 CFR Part 2002	§2.23 Training — Record Keeping

7 Summary

Total Requirements: 72
Mandatory: 66
Recommended: 5
Optional: 1
Categories: 22

Applicability Breakdown:

Technical: 32 (verifiable against software)
Organizational: 34 (requires process/policy)
Informational: 6 (reference material)

8 Revision History

Version	Date	Description
1.0	February 17, 2026	Initial release